

8.	<i>In re: 30 Galeana, Foothill Ranch, Ca 92610</i> 2026-01550091	<u>Please see the above notice regarding oral argument on June 25, 2026</u> Before the court is the petition regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale filed by petitioner California TD Specialists (Petitioner). The petition is filed under Civil Code section 2924j following a trustee's sale Petitioner conducted on June 27, 2025, pursuant to a deed of trust, regarding the property located at 30 Galeana, Foothill Ranch, California 92610 (Property). After paying off the trust deed that lead to the sale and Petitioner's fees and expenses, Petitioner seeks to deposit the surplus funds of \$143,391.14 with the court and be discharged from responsibility for the distribution of those funds because, after due diligence, Petitioner is unable to determine the priority of the written claims received to the surplus proceeds. The court finds the petition complies with the notice and other requirements of Civil Code section 2924j. Accordingly, the petition is GRANTED. Petitioner is ordered to deposit all surplus funds relating to the trustee's sale for the Property with the clerk of the court forthwith. Upon deposit of the funds with the clerk of the court, Petitioner shall be discharged of further responsibility for the distribution of the sale proceeds pursuant to Civil Code section 2924j, subdivision (c). Upon deposit with the clerk of the court, the surplus funds shall stay on deposit with the clerk until such time as claims to the funds are duly asserted and granted, or until the funds escheat to the court. (Gov. Code, § 68084.1(a) ["Except as otherwise provided by law, any money, excluding restitution to victims, that has been deposited with a superior court, or that a superior court is holding in trust for the lawful owner, in a court bank account or in a court trust account in a county treasury, that remains unclaimed for three years shall become the property of the superior court if, after published notice pursuant to this section, the money is not claimed or no verified complaint is filed and served"]; Code Civ. Proc. § 1502(a)(3) ["This chapter does not apply to any of the following: [¶] . . . [¶] (3) Any property in the official custody of a court if the property may be transferred to the Trial Court Operations Fund under Section 68084.1 of the Government Code"] Code Civ. Proc., § 1519 ["All tangible personal property located in this state, and, subject to Section 1510, all intangible personal property, held for the owner by any government or governmental subdivision or agency, that
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	has remained unclaimed by the owner for more than three years escheats to this state”].) The court has received claims to the surplus funds from (1) Riverside County Department of Child Support Services, (2) Paula Mead, (3) Foothill Ranch Maintenance Corporation, and (4) Peterson Law, LLP. The court also has received a “Request for Judicial Notice of Appearance” from claimants Andy Atiyeh and Lannette Atiyeh (see ROA 37), but no actual claim was submitted by these claimants. Finally, the petition also identifies claims by Crest Builders, Inc. and the State of California Franchise Tax Board, but neither of these claimants have filed any claim with the court. The court cannot grant any of these claims at this time because the funds have not yet been deposited with the court and the clerk has not yet given notice to all interested parties of a hearing to determine any and all claims to the funds. The second paragraph of Civil Code section 2924j(d) states, “Within 90 days <u>after deposit</u> with the clerk, the court shall consider all claims filed at least 15 days before the date on which the hearing is scheduled by the court, <u>the clerk shall serve written notice of the hearing by first-class mail on all claimants identified in the trustee's declaration at the addresses specified therein.</u>” (Underlining added.) The court therefore sets a hearing to consider the claims it has received plus any additional claims to the surplus funds that may be filed for THURSDAY, SEPTEMBER 10, 2026, AT 2:00 P.M., IN DEPARTMENT C23. (Civ. Code, § 2924j(d).) The foregoing claimants who already have filed a claim with the court may stand on their existing claim or may file supplemental information in support of their claim and otherwise address the priority to which their claim is entitled. Any claims to the surplus funds or other filings must be filed with the court and served on all interested parties at least 15 days before the above hearing date. <u>The clerk of the court is directed to give notice of the foregoing hearing by first class mail to all claimants identified in attachment 8 to the petition and to all parties who have filed any claim or other document in this action.</u> Petitioner’s counsel is ordered to give notice of this ruling and to submit a proposed order.
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